

24STLC06914 24STLC06914

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-21

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Case Number: 24STLC06914 Hearing Date: July 21, 2026 Dept: 25

HEARING

DATE: Tues., July 21, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Lewis

v. CPDA Trucking LLC, et al.

COMPL. FILED: 09-23-24

CASE NUMBER: 24STLC06914

NOTICE:

OK

PROCEEDINGS: MOTION TO RECLASSIFY THE CASE AS AN UNLIMITED JURISDICTION
CIVIL CASE

MOVING PARTY: Plaintiff Catherine Lewis

RESP. PARTY: Defendants CPDA Trucking, LLC and Jose Francisco Garcia

MOTION FOR RECLASSIFICATION

(CCP § 403.040)

TENTATIVE RULING:

The Court DENIES Catherine Lewis's motion for reclassification as an unlimited jurisdiction case.

Lewis is to
give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) OK

OPPOSITION: Filed
July 8, 2026 [] Late [] None

REPLY: None
filed as of July 16, 2026 [] Late [X]
None

ANALYSIS:

Catherine

Lewis brought a limited civil action against CPDA Trucking LLC and Jose Francisco Garcia over a motor vehicle collision. CPDA and Garcia (collectively, CPDA) answered. Lewis now moves to reclassify this case to the Court's unlimited jurisdiction pursuant to Code of Civil Procedure section 403.040, subdivision (b).

To reclassify an action at this point, a plaintiff must show (1) that the case is incorrectly classified and (2) that she had good cause for not seeking reclassification earlier. (Code Civ. Proc., § 403.040, subd. (b).) To show that a case is incorrectly classified, the plaintiff "must present evidence to demonstrate a possibility the damages will exceed \$[35],000." (Ytuarte v. Superior Court (2005) 129 Cal.App.4th 266, 279, emphasis altered.)

What is Lewis's evidence? There is evidence that Lewis incurred

\$11,253.40 in medical expenses. That evidence doesn't demonstrate a possibility that Lewis will recover more, given that the last bill she offered was from January 2023.

To be sure, Lewis also offers a statement of damages that she served on CPDA in March 2026 and in which she demands \$100,000 in non-economic damages. But a statement of damages isn't evidence any more than an allegation in a complaint is. (See *Damele v. Mack Trucks, Inc.* (1990) 219 Cal.App.3d 29, 41 [a statement of damages serves the same purpose in a personal injury case as does alleging damages in any other type of action].)

Likewise, Lewis's counsel notes in the reply brief that he spoke to Lewis's daughter, who told him in March 2026 that Lewis "suffered a loss of mental cognizance following the traffic collision . . . and due to her mental decline . . . could no longer drive or take care of herself." That fact might be used to justify damages exceeding the limited jurisdiction maximum, but a lawyer's unsworn statements also aren't evidence. (In *re Marriage of Pasco* (2019) 42 Cal.App.5th 585, 592.) Never mind that the statements were offered for the first time on reply, when CPDA couldn't respond to them. (See *Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, fn. 8 [courts should consider new facts presented in reply only "in the exceptional case," and then only if the non-moving party has an opportunity to respond to those facts].)

The bottom line is that Lewis hasn't offered the evidence required to support reclassification of this action. If she hasn't met her burden, the Court cannot grant her motion. The Court therefore DENIES it.

Lewis is to give notice.